

§ 311.1. The petition; definition and contents. 1. A petition originating a juvenile delinquency proceeding is a written accusation by an authorized presentment agency.

2. A petition shall charge at least one crime and may, in addition, charge in separate counts one or more other crimes, provided that all such crimes are joinable in accord with section 311.6.

3. A petition must contain:

(a) the name of the family court in which it is filed;

(b) the title of the action;

(c) the fact that the respondent is a person of the necessary age to be a juvenile delinquent at the time of the alleged act or acts;

(d) a separate accusation or count addressed to each crime charged, if there be more than one;

(e) the precise crime or crimes charged;

(f) a statement in each count that the crime charged was committed in a designated county;

(g) a statement in each count that the crime charged therein was committed on, or on or about, a designated date, or during a designated period of time;

(h) a plain and concise factual statement in each count which, without allegations of an evidentiary nature, asserts facts supporting every element of the crime charged and the respondent's commission thereof with sufficient precision to clearly apprise the respondent of the conduct which is the subject of the accusation;

(i) the name or names, if known, of other persons who are charged as co-respondents in the family court or as adults in a criminal court proceeding in the commission of the crime or crimes charged;

(j) a statement that the respondent requires supervision, treatment or confinement; and

(k) the signature of the appropriate presentment attorney.

4. A petition shall be verified in accordance with the civil practice law and rules and shall conform to the provisions of section 311.2.

5. If the petition alleges that the respondent committed a designated

felony act, it shall so state, and the term "designated felony act petition" shall be prominently marked thereon. Certified copies of prior delinquency findings shall constitute sufficient proof of such findings for the purpose of filing a designated felony petition. If all the allegations of a designated felony act are dismissed or withdrawn or the respondent is found to have committed crimes which are not designated felony acts, the term "designated felony act petition" shall be stricken from the petition.

6. The form of petition shall be prescribed by the chief administrator of the courts. A petition shall be entitled "In the Matter of", followed by the name of the respondent.

7. When an order of removal pursuant to article seven hundred twenty-five of the criminal procedure law is filed with the clerk of the court, such order and those pleadings and proceedings, other than the minutes of any hearing inquiry or trial, grand jury proceeding, or of any plea accepted or entered, held in this action that has not yet been transcribed shall be transferred with it and shall be deemed to be a petition filed pursuant to subdivision one of section 310.1 containing all of the allegations required by this section notwithstanding that such allegations may not be set forth in the manner therein prescribed. Where the order or the grand jury request annexed to the order specifies an act that is a designated felony act, the clerk shall annex to the order a sufficient statement and marking to make it a designated felony act petition. The date such order is filed with the clerk of the court shall be deemed the date a petition was filed under this article. For purposes of service in accord with section 312.1, however, only the order of removal shall be deemed the petition. All minutes of any hearing inquiry or trial held in this action, the minutes of any grand jury proceeding and the minutes of any plea accepted and entered shall be transferred to the family court within thirty days.